

RESTRAINT AND SECLUSION OF STUDENTS

The purpose of this document, *Regulation on the Use of Restraint and Seclusion*, is to provide direction to all school administrators and employees regarding the appropriate use of restraint and seclusion to manage student behavior in emergency situations. This regulation is intended to address core issues related to the use of restraint in an effort to maintain a safe, supportive, and positive learning environment for all students and staff.

Loudoun County Public Schools (LCPS) prohibits the use of seclusion as defined in [Policy 5345, Restraint and Seclusion of Students](#), and shall focus on ensuring communication supports, trauma-informed practices and the elimination of exclusionary discipline.

LCPS parents guardians shall be notified of Policy 5345 and this corresponding regulation regarding the use of restraint and seclusion on an annual basis. The regulation shall be posted on the LCPS division website and made available to employees, students, and the public. Print copies of Policy 5345 and this corresponding regulation are available as needed to individuals who do not have online access.

A. Definitions. For the purposes of this document, the following terms and definitions are provided.

1. Aversive Stimuli. Interventions that are intended to induce pain or discomfort to a student for the purposes of punishing the student, or eliminating or reducing maladaptive behaviors, such as:

- a. Noxious odors and tastes;
- b. Water and other mists or sprays;
- c. Blasts of air;
- d. Corporal punishment as defined in Section [22.1-279.1](#) of the Code of Virginia;
- e. Verbal and mental abuse;
- f. Forced exercise when:
 - (i) The student's behavior is related to the student's disability;
 - (ii) The exercise would have a harmful effect on the student's health; or
 - (iii) The student's disability prevents participation in such activities; or
- g. Deprivation of necessities, including:

RESTRAINT AND SECLUSION OF STUDENTS

- (i) Food and liquid at a time it is customarily served;
- (ii) Medication; or
- (iii) Use of restroom.

2. Behavioral Intervention Plan (BIP). A plan that utilizes positive behavioral interventions and supports to address behaviors that interfere with a student's learning or that of others, or behaviors that require disciplinary action.

3. Business Day. Monday through Friday, 12 months of the year, exclusive of federal and state holidays (unless holidays are specifically included in the designation of business days).

4. Calendar Day. Consecutive days, inclusive of Saturdays and Sundays. Whenever any period of time fixed by this regulation expires on a Saturday, Sunday, federal holiday, or state holiday, the period of time for taking such action shall be extended to the next day that is not a Saturday, Sunday, federal holiday, or state holiday.

5. Corporal Punishment. The infliction of, or causing the infliction of, physical pain on a student as a means of discipline.

6. Functional Behavioral Assessment (FBA). A process to determine the underlying cause or functions of a student's behavior that impede the learning of the student or the learning of the student's peers. A functional behavioral assessment may include a review of existing data or new testing data or evaluation.

7. Individualized Education Program (IEP). A written statement for a child with a disability that is developed, reviewed, and revised at least annually in a team meeting in accordance with the Regulations Governing Special Education Programs for Children with Disabilities in Virginia ([8VAC20-81](#)). The IEP specifies the individual educational needs of the child and what special education and related services are necessary to meet the child's educational needs.

8. Mechanical Restraint. The use of any material, device, or equipment to restrict a student's freedom of movement. This term "mechanical restraint" does not include the devices implemented by trained school personnel or used by a student that have been prescribed by an appropriate medical or related service professional and are used with parental consent and for the specific and approved purposes for which such devices were designed, such as:

- a. Adaptive devices or mechanical supports used to achieve proper body position, balance, or alignment to allow greater freedom of mobility than would be possible without the use of such devices or mechanical supports;

RESTRAINT AND SECLUSION OF STUDENTS

- b. Vehicle restraints, including seat belts and harnesses, when used as intended during the transport of a student in a moving vehicle;
- c. Restraints for medical immobilization;
- d. Orthopedically prescribed devices that permit a student to participate in activities without risk of harm;
- e. High-chairs and feeding stations used for age or developmentally appropriate students; or
- f. Changing tables.

9. Pharmacological Restraint. A drug or medication used on a student to control behavior or restrict freedom of movement that is not: (i) prescribed by a licensed physician or other qualified health professional under the scope of the professional's authority for the standard treatment of a student's medical or psychiatric condition and (ii) administered as prescribed by a licensed physician or other qualified health professional acting under the scope of the professional's authority.

10. Physical Restraint. A personal restriction that immobilizes or reduces the ability of a student to move freely. The term “physical restraint” does not include (i) briefly holding a student in order to calm or comfort the student; (ii) holding a student’s hand or arm to escort the student safely from one area to another; or (iii) the use of incidental, minor, or reasonable physical contact or other actions designed to maintain order and control.

11. Prone Restraint. A physical restraint with an individual lying face down.

12. Restraint. Any method or device restricting another person’s freedom of movement, physical activity, or normal access to the person’s body, including but not limited to physical, mechanical, or pharmacological methods.

13. School Day. Any day, including a partial day, that students are in attendance at school for instructional purposes. The term has the same meaning for all students in school, including students with and without disabilities.

14. School Personnel. Individuals employed by the school division on a full-time or part-time basis or as independent contractors or subcontractors as instructional, administrative, and support personnel and include individuals serving as a student teacher or intern under the supervision of appropriate school personnel.

15. Seclusion. The involuntary confinement of a student alone in a room or area from which the student is physically prevented from leaving. Provided that no such room or space is locked, the term “seclusion” does not include:

RESTRAINT AND SECLUSION OF STUDENTS

- a. In-school suspension;
- b. Detention;
- c. Time-out, as defined in this regulation;
- d. Student-requested breaks in a different location in the room or in a separate room;
- e. Removal of a student for a short period of time from the room or separate area of room to provide the student with an opportunity to regain self-control, so long as the student is in a setting from which the student is not physically prevented from leaving;
- f. Removal of a student for disruptive behavior from a classroom by the teacher, as provided in [Section 22.1-276.2 of the Code of Virginia](#);
- g. Confinement of a student alone in a room or area from which the student is physically prevented from leaving during the investigation and questioning of the student by school personnel regarding the student's knowledge of or participation in events constituting a violation of the student code of conduct, such as a physical altercation, or an incident involving drugs or weapons; or
- h. Removal of students and staff in the face of imminent danger in a classroom space, where the student in crisis is not left alone in the classroom.

16. Supine Restraint. A physical restraint with an individual lying face up.

17. Time-out. A behavioral intervention in which the student is temporarily removed from the learning activity but in which the student is not confined.

B. Prohibited Actions. The following actions are prohibited in LCPS, without exception:

1. Use of seclusion of students as defined in Policy 5345.
2. Use of physical restraint for students under the age of 6.
3. Use of prone restraints.
4. Use of supine restraints.
5. Use of aversive stimuli.

RESTRAINT AND SECLUSION OF STUDENTS

6. Use of corporal punishment.
7. Use of mechanical restraint.
8. Use of pharmacological restraints.
9. Use of any measure that restricts a student's breathing or harms the student.
10. Use of physical restraint or seclusion (i) as punishment or discipline; (ii) as a means of coercion or retaliation; (iii) a convenience; (iv) to prevent property damage, or (v) in any manner other than as provided for in 8 VAC 20-750-40 and 8 VAC 20-750-50.
11. Use of seclusion rooms or freestanding units not meeting the standards set forth in [8 VAC 20-750-50](#) et seq.
12. Use of restraint when medically or psychologically contraindicated as stated in documentation by the Individualized Education Program (IEP) team, the student's Section 504 team, school professionals, or by a licensed physician, psychologist, or other qualified health professional under the scope of the professional's authority.

Notwithstanding the above, nothing in this regulation shall be construed to prohibit physical restraint under the conditions outlined in [8 VAC 20-750-40](#) and [8 VAC 20-750-50](#).

C. Training and Staff Development. All LCPS employees have the responsibility for understanding and complying with policies and regulations related to the appropriate management and support of student behavior including the regulation herein related to the appropriate use of restraint and seclusion.

1. LCPS shall:
 - a. Ensure that all school personnel receive training that focuses on skills related to positive behavior support, conflict prevention, de-escalation, and crisis response, including follow-up support and social emotional strategy support for students, staff and families;
 - b. Ensure that all school personnel receive initial training regarding the regulations, policies, and procedures governing the use of physical restraint and prohibition of seclusion;
 - c. Provide annual advanced training in the use of physical restraint and seclusion for at least one administrator in every school building and for school personnel assigned to work with any student whose IEP or Section 504 team determines the student is likely to be physically restrained; and
 - d. Ensure that any initial or advanced training is evidence-based.

RESTRAINT AND SECLUSION OF STUDENTS

2. Each school must have a school-based team which includes members who are trained in the use of physical restraint and seclusion. The team shall be comprised of administrative and instructional personnel including staff, who by reason of their training and job responsibilities, work with students who exhibit serious problem behavior or have the potential to engage in dangerous conduct. The team membership shall include the following school personnel:

- a. Principal or designee,
- b. Special education teacher,
- c. General education teacher, and
- d. Other staff designated by the principal.

3. Identified LCPS staff will be trained in the use of non-physical intervention to help students de-escalate from a behavioral crisis. Training includes instruction in the use of verbal and non-verbal communication skills, conflict resolution skills, and positive behavioral interventions and supports. Professional learning will include relational skills for building healthy relationships, communication skills, and conflict resolution competencies, as well as technical skills in body positioning, escape and evasion techniques, and physical interaction and restraint. The training of school personnel must include the following elements:

- a. Behavior management system that addresses physical restraint and seclusion;
- b. Recertification requirements;
- c. Content appropriate to the age and developmental level of students;
- d. Education in the use of positive, instructional and preventative methods for addressing student behavior;
- e. Instruction in de-escalation strategies, conflict management and crisis response;
- f. Definition of seclusion;
- g. Procedures for the appropriate use of seclusion;
- h. Methods for monitoring a student's well-being when using emergency safety procedures with an emphasis on prevention and de-escalation strategies;
- i. Education about the potential harm of using restraint and seclusion;

RESTRAINT AND SECLUSION OF STUDENTS

- j. Parent, guardian and adult student notification.

D. Procedures for the Appropriate Use of Physical Restraint and Seclusion.

While seclusion is a prohibited practice under Policy 5345, staff will receive training on the definition, use of and procedures for the appropriate use of seclusion. The procedures for the appropriate use of physical restraint shall be followed by all staff working with students in the school setting. The following procedures apply to all students when the physical safety of the student and/or others is in imminent danger.

1. LCPS staff members will not be subject to adverse employment action on the basis that those LCPS staff members, who are determined to have had, in good faith, removed students and staff in the face of imminent danger in a classroom space where a student in crisis may have been left alone in the room until the student no longer presents imminent danger to self or others, and who have done so in accordance with the training staff members receive on the definition, use of, and procedures of the appropriate use of seclusion included in this regulation.

2. Physical restraint shall **only be used in an emergency** (i.e., a sudden, urgent, usually unexpected situation) that requires a person(s) to take immediate action to avoid serious physical harm, injury, or death to the student or others when there is imminent danger. Less restrictive interventions should be employed first unless in an emergency when, in reasonable judgment of the particular school personnel implementing physical restraint in an emergency situation, less restrictive intervention would be judged to be ineffective or historically have not been successful with individual students.

3. Physical restraint and seclusion are not a teaching procedure or behavioral intervention and shall not be administered as punishment or discipline, a means of coercion or retaliation, a convenience, to prevent property damage or to address behaviors for non-emergency reasons, such as noncompliance, disrespect, insubordination, disobedience, misuse of property, disruption, or threats.

4. Unless a student's damage to property creates an imminent risk of serious physical harm or injury to the student or others, the damage of property does not itself indicate an imminent risk of serious physical harm or injury and shall not be the justification for the use of physical restraint of a student.

5. Physical restraint and seclusion shall not be used in a manner that restricts a student's breathing or harms the student. If physical restraint is used it shall not include restraining the individual in a chair or against a wall. Furthermore, prone restraints (where the student is placed face down on his/her stomach) or supine restraints (where the student is face up on his/her back), or any other physical maneuver that prevents a student from breathing or speaking is strictly prohibited.

RESTRAINT AND SECLUSION OF STUDENTS

6. Physical restraint and seclusion should only be conducted by trained school personnel with at least one additional staff member present and in line of sight. Staff shall maintain supervision and observation of the student for the entire period of a restraint or seclusion.

7. Staff trained in the use of cardiopulmonary resuscitation (CPR) and First Aid should be available in the event of an emergency related to the use of physical restraint. A portable automatic electronic defibrillator (AED) should be available in the school.

8. Physical restraint must only be used for the period of time necessary to accomplish its purpose of ensuring safety, using only the force that is necessary and no longer than 3 minutes per restraint at which time the student must be released before the hold can be reinitiated, if necessary.

9. Based on the age and development of a student, seclusion should last only as long as necessary to address a student's behavior that poses a threat of imminent danger or serious physical harm to self or others.

10. Following the use of physical restraint or seclusion, the student must be seen by a health clinic staff member. An injury incident report form is to be completed and submitted to Risk Management if staff and/or student are injured.

11. By the end of the **same school day**, the incident and any related first aid provided to the student and/or staff must be reported to the principal/designee; level director; and for students with disabilities, the Director of Special Education or Supervisor of Special Education.

12. The *Restraint Incident Report* form or *Seclusion Incident Report* form must be completed by the school employee involved in the incident or other school personnel, as may be designated by the principal, and submitted in the Student Information System within **two (2) school days** following the physical restraint and/or seclusion. A copy of the generated incident report is to be placed in the student's educational record and provided as written notification to the student's parent/guardian within **seven (7) calendar days** of the incident.

13. A staff debriefing must occur within **two (2) school days** following the incident necessitating emergency physical restraint or seclusion. The debriefing shall include a school administrator and all personnel involved in the use of the physical restraint or seclusion. The purpose of the debriefing is to discuss whether the use of physical restraint or seclusion was implemented in compliance with Policy 5345 and corresponding regulation, review the events leading to the use of physical restraint or seclusion, and to identify additional preventative strategies to prevent or reduce the future need for physical restraint or seclusion.

RESTRAINT AND SECLUSION OF STUDENTS

14. As appropriate depending on the student's age and developmental level, following each incident of physical restraint or seclusion, as soon as practicable but no later than two school days or upon the student's return to school, the principal or designee shall review the incident with the student involved to discuss details of the incident in an effort to assist the student and school personnel in identifying patterns of behaviors, triggers or antecedents; and alternative positive behaviors or coping skills the student may utilize to prevent or reduce behaviors that may result in the application of physical restraint or seclusion. School personnel in attendance may include a member of Department of Student Services (school counselor, school psychologist, school social worker, student assistance specialist, or special education supervisor as appropriate) and teaching staff. The parent/guardian will be invited to participate; however, their attendance should not delay the timeline mentioned herein.

15. If the student has a history of dangerous behavior, the use of physical restraint as an emergency safety procedure shall be discussed with the student's parent/guardian if it is anticipated that such use will be necessary to address the student's behavior. As part of the discussion, parent/guardian will be provided information on:

- a. When and how physical restraint may be used;
- b. Specific techniques to use with the student; and
- c. Physical, medical, and psychiatric concerns and the effects of medications when physical restraint is used.

16. In the initial development and subsequent review and revision of a student's IEP or Section 504 plan, the team shall consider whether the student displays behaviors that are likely to result in the use of physical restraint. If the use is likely, the team shall consider the need for (i) an FBA; (ii) a new or revised BIP that addresses the underlying causes or purposes of the behavior as well as de-escalation strategies, conflict prevention, and positive behavioral interventions; (iii) any new or revised behavior goals; (iv) any additional evaluations or reevaluations; and (v) crisis plan.

Within ten (10) school days following the second school day in a single school year on which an incident of physical restraint or seclusion has occurred, the student's IEP or 504 team shall meet to discuss the incident and consider, among other things, the need for (i) an FBA; (ii) a new or revised BIP that addresses the underlying causes or purposes of the behavior as well as de-escalation strategies, conflict prevention and positive behavioral interventions; (iii) any new or revised behavior goals; (iv) any additional evaluations or reevaluations; and (v) crisis plan.

For students who are not eligible under IDEA or Section 504, within ten (10) school days following the second school day in a single school year on which an incident of physical restraint or seclusion has occurred, a team consisting of the parent/guardian, the principal or designee, a teacher of the student, a staff member involved in the incident (if not the teacher or

RESTRAINT AND SECLUSION OF STUDENTS

administrator already invited), and other appropriate staff members as determined by the school division, such as the school psychologist, school counselor, or school resource officer, shall meet to discuss the incident and to consider, among other things the need for (i) an FBA; (ii) a new or revised BIP that addresses the underlying causes or purposes of the behavior as well as de-escalation strategies, conflict prevention, and positive behavioral interventions; (iii) a referral for evaluation; and (iv) a crisis plan.

Nothing in this section shall be construed to (i) excuse the team or its individual members from the obligation to refer the student for evaluation if the team or members have reason to suspect that the student may be a student with a disability; or (ii) prohibit the completion of an FBA or BIP for any student, with or without a disability, who may benefit from these measures but whose behavior has resulted in fewer than two incidents of physical restraint or seclusion in a single school year.

17. Written documentation of parental concerns about the use of physical restraint or seclusion should be reviewed by the school administrator and maintained in the student's file.

18. LCPS school-based staff should consult with the identified staff with behavior training and expertise to work on positive behavioral interventions for students with challenging behaviors. The continuum of interventions and supports can be utilized to affect high quality behavior plans for students as a comprehensive, systematic approach. The designated Department of Student Services staff are available to provide the specialized training and ongoing support necessary to achieve this goal for all students so they can be successful participants in the school community.

19. The principal or designee shall regularly review the use of physical restraint and seclusion to ensure compliance with LCPS Policy 5345 and corresponding regulation, and when there are multiple incidents within the same classroom or by the same individual, the principal or designee shall take appropriate steps to address the frequency of use.

E. Parent Notification and Awareness.

1. The Department of Student Services shall ensure annual notification of this policy and associated regulation.

2. The student's case manager or school administrator shall make reasonable efforts to ensure that direct contact with the parent/guardian, either in person or through telephone conversation, or other means of communication authorized by the parent/guardian, such as email, to notify the parent/guardian of the restraint or seclusion and any related first aid on the day the incident occurred.

3. If the restraint or seclusion has occurred outside the regular school day, notification shall be made as soon as practicable in compliance with LCPS' school crisis/emergency management, and medical emergency response plan.

RESTRAINT AND SECLUSION OF STUDENTS

F. Data Collection and Reporting. In accordance with Policy 5345, each instance of physical restraint and seclusion shall be documented and recorded in the LCPS Student Information System. The Assistant Superintendent for Student Services shall publicly report physical restraint and seclusion quantitative data on an annual basis. The annual report shall contain the total number of physical restraint and seclusion instances as reported by schools.

Issued: 1/8/19
Current Revision: 8/22/25

United States Department of Education (2012). *Restraint and seclusion: resource document*. Retrieved from <http://www2.ed.gov/policy/seclusion/restraints-and-seclusion-resources.pdf>

Leg. Refs.: Code of Virginia [8.01-220.1:2](#), [9.1-101](#), [22.1-253.13:7](#), [22.1-276.2](#), [22.1-279.1](#), [22.1-16](#), [8 VAC 20-81](#), [8 VAC 20-81-160](#), [8 VAC 20-750](#), [8 VAC 20-750-5](#), [8 VAC 20-750-40](#), [8VAC 20-750-50](#), [8 VAC 20-750-80](#), [8 VAC 20-750-100](#), [8 VAC 20-750-10](#), [8 VAC 20-750-20](#), [8 VAC 20-750-30](#), [8 VAC 20-750-60](#), [8 VAC 20-750-70](#), [8 VAC 20-750-90](#), [8 VAC 20-750-110](#)

Cross Ref.: [Policy 8205](#), Discipline Authority, [Policy 8280](#), Corporal Punishment Prohibited